

The Chennai Metro Railway (Procedure of Claims) Rules, 2014

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The Chennai Metro Railway (Procedure of Claims) Rules, 2014

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The Chennai Metro Railway (Procedure of Claims) Rules, 2014

Rule THE-CHENNAI-METRO-RAILWAY-PROCEDURE-OF-CLAIMS-RULES-2014 of 2014

Published on 28 October 2014

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The Chennai Metro Railway (Procedure of Claims) Rules, 2014

Published vide Notification New Delhi, the 28th October, 2014

G.S.R. 760(E). - In exercise of the powers conferred by clause (iii) of sub-section (2) of section 56 and clause (d) of sub-section (2) of section 100 read with sub-section (3) of section 53 and section 57 of the Delhi Metro Railway (Operation and Maintenance) Act, 2002 (60 of 2002), the Central Government hereby makes the following rules, namely

:-

1.

Short title and commencement.

(1)

These rules may be called the Chennai Metro Railway (Procedure of Claims) Rules, 2014.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Metro Railway (Operation and Maintenance) Act, 2002 (No. 60 of 2002);

(b)

"Claims Commissioner" means the Claims Commissioner appointed under Section 48 of the Act;

(c)

"applicant" means a person making an application to the Claims Commissioner under section 58 of the Act;

(d)

"Form" means a form appended to these rules;

(e)

"legal practitioner" shall have the same meaning assigned under clause (i) of section 2 of the Advocates Act, 1961 (25 of 1961);

(f)

"legal Representative" means a person who in law represents the estate of the deceased;

(g)

"Schedule" means a Schedule appended to these rules;

(h)

"section" means a section of the Act.

(2)

The words and expressions used in these rules and not defined but defined in the Act and Metro Railway General Rules, 2013 shall have the meanings respectively assigned to them in the Act and the Metro Railway General Rules, 2013.

3.

Procedure for filing applications.

(1)

The application for payment of compensation in respect of accidents involving death, or bodily injury to person or damage to any property arising out of the working of the Metro Railway to the Claims Commissioner shall be presented in the Form given in the First Schedule either by the applicant in person or by his duly authorized legal representative: Provided that an application may also be sent by registered post to the Claims Commissioner.

(2)

The application referred to in sub-rule (1) shall be presented in duplicate.

(3)

Every application shall be typed legibly in double space on one side of paper of good quality.

4.

Scrutiny of application.

(1)

The Claims Commissioner shall endorse on every application the date on which it is presented or received under rule 3 and sign the endorsement.

(2)

If the application on scrutiny is found to be in order, it shall be registered and given a serial number.

(3)

If the application on scrutiny is found to be defective and the defect noticed is formal in nature, the Claims Commissioner may allow the applicant, to rectify the same in his presence and if the defect is not formal in nature, the Claims Commissioner may allow the applicant such time to rectify the defect as he may deem fit.

(4)

If the applicant fails to rectify the defect within the time allowed under sub-rule (3), the Claims Commissioner may, by order and for reasons to be recorded in writing, decline to register the application and notify the applicant accordingly.

(5)

An appeal against the order passed under sub-rule (4) may be preferred by the person aggrieved within fifteen days from the date of such order and such appeal shall be dealt with and disposed of by the Claims Commissioner.

5.

Notice to Metro Railway Administration.

(1)

The Claims Commissioner shall issue notice to Metro Railway Administration to show cause against the application on a date of hearing to be specified therein.

(2)

The notice referred to in sub-rule (1) shall be accompanied by a copy of the application.

(3)

If the representative of Metro Railway Administration does not appear on the date specified in the notice referred to in sub-rule (1) or appears and admits the claim, the Claims Commissioner shall forthwith proceed to dispose off the application.

(4)

If the Metro Railway Administration contests the claim, it may file a reply along with copy of such document on which it relies on or before the date of hearing and such reply and copies of the document shall form part of the record.

6.

Filing of an Affidavit.

(1)

The Claims Commissioner may direct the applicant and the Metro Rail Administration to give evidence, if any, by affidavit.

(2)

Notwithstanding anything contained in sub-rule (1), where the Claims Commissioner considers it necessary for just decision of the case, he may order cross-examination of any deponent.

7.

Filing of reply and other documents by the respondents.

(1)

Metro Railway Administration may file its reply to the application and copies of the documents on or before the date of hearing of the application.

(2)

In reply filed under sub-rule (1), the Metro Railway Administration shall specifically admit, deny or explain the facts stated in the application and state additional facts necessary in its reply.

8.

Summary disposal of application.

- The Claims Commissioner may, after considering the application, summarily dismiss the application, if for reasons to be recorded in writing, he is of the opinion that there are not sufficient grounds for proceeding therewith.

9.

Ex-parte hearing and disposal of application.

(1)

Where on the date fixed for hearing the application or any other date to which such hearing may be adjourned, the applicant appears and the representative of Metro Railway Administration does not appear, the Claims Commissioner may, in his discretion, adjourn the hearing or hear and decide the application ex-parte.

(2)

Where an application has been heard ex-parte against the Metro Railway Administration, the Metro Railway Administration may apply to the Claims Commissioner for an order to set aside it, and if the Metro Railway Administration satisfies the Claims Commissioner that the notice was not duly served or that its representative was prevented by any sufficient cause from appearing, the Claims Commissioner may make an order setting aside the ex-parte hearing upon such terms as he thinks fit and shall appoint the day for proceeding with the application.

10.

Disposal of application in default.

(1)

Where on the date fixed for hearing the application or any other date to which such hearing may be adjourned, the representative of Metro Railway Administration appears and the applicant does not appear, the Claims Commissioner may, at his discretion, adjourn the hearing or hear and decide the application in default.

(2)

Where an application has been heard and disposed in default against the applicant, the latter may apply to the Claims Commissioner for any order to set aside it and if the applicant satisfies the Claims Commissioner that the notice was not duly served or he was prevented by any sufficient cause from appearing, the Claims Commissioner may make an order setting aside the order in default, upon such terms as he thinks fit and shall appoint the day for proceeding with the application.

11.

Summoning of witnesses and method of recording evidence.

(1)

If an application is presented by any party to the proceedings for summoning of witnesses, the Claims Commissioner shall issue summons for the appearance of such witnesses unless he considers that their appearance is not necessary for the just decision of the case.

(2)

The Claims Commissioner shall make a brief memorandum of substance of the evidence of every witness as the examination of the witness proceeds and such memorandum shall form part of the record:

Provided that if the Claims Commissioner does not make such memorandum, he shall record the reasons for his inability to do so and shall cause such memorandum to be made in writing and shall sign the same, and such memorandum shall form part of the record.

12.

Decision of the Claims Commissioner.

- The Claims Commissioner shall decide every application as expeditiously as possible on perusal of documents, affidavits and other evidence, if any, and after hearing such oral argument as may be advanced.

13.

Order to be passed and signed.

(1)

The Claims Commissioner, after hearing the applicant and the Metro Railway Administration, shall pass an order as he thinks fit, either at once or as soon as thereafter as may be practicable.

(2)

Every order of the Claims Commissioner shall be in writing and shall be signed by him.

(3)

An order made by the Claims Commissioner shall be executed as a decree of civil court and the provisions of the Code of Civil Procedure, 1908, so far as may be, and shall apply as they apply in respect of decree of a civil court.

14.

Review of decision.

(1)

Any person considering himself aggrieved by any order of the Claims Commissioner, on account of some mistake or error apparent on the face of the record, or for any other sufficient reason, may apply for review of a final order not being an interlocutory order, to the Claims Commissioner.

(2)

Where it appears to the Claims Commissioner that there is no sufficient ground for a review, he shall reject the application.

(3)

Where the Claims Commissioner is satisfied with the grounds made in the application and considers it in the interest of justice, he shall allow the application for review:

Provided that no such application for review shall be allowed without previous notice to the Metro Railway Administration or to enable it to appear and be heard in support of the order, a review of which is applied for.

15.

Orders or directions by the Claims Commissioner.

- Nothing in these rules shall be deemed to limit or otherwise affect the power of the Claims Commissioner to pass such orders or give such directions as may be necessary or expedient to give effect to his orders or to prevent abuse of the process or to secure the ends of justice.

16.

Association of experts.

(1)

The Claims Commissioner may, for the purpose of determining any claim for compensation associate one or more experts possessing any knowledge of any matter relevant to the inquiry.

(2)

The fees or allowances, if any, to be paid to the persons associated with the inquiry under sub-rule (1), shall be determined by the claims commissioner as he considers necessary, and the same shall be paid by the Metro Railway Administration.

17.

Amount of compensation.

(1)

The amount of compensation payable in respect of death or injuries shall be as specified in the Second Schedule.

(2)

The amount of compensation payable for an injury not specified in Part II or Part III of the Second Schedule but which, in the opinion of the Claims Commissioner, is such as to deprive a person of all his capacity to do any kind of work, shall be four lakh rupees.

(3)

The amount of compensation payable in respect of any injury (other than an injury specified in the Second Schedule or referred to in sub-rule (2) resulting in pain and suffering, shall be such as the Claims Commissioner may, after taking into consideration medical evidence, besides other circumstances of the case, determine to be reasonable:

Provided that if more than one injury is caused by the same accident, compensation shall be payable in respect of each such injury:

Provided further that the total compensation in respect of all such injuries shall not exceed eighty thousand rupees.

(4)

Where compensation has been paid for any injury which is less than the amount which would have been payable as compensation if the injured person had died, and the person subsequently dies of the injury, a further compensation equal to difference between the amount payable for death and amount already paid, shall become payable.

(5)

The Compensation for loss, destruction or deterioration of goods being carried by the passenger as his personal baggage, shall be paid to such an extent as the Claims Commissioner may, after taking into consideration all circumstances of the case, determine to be reasonable.

18.

Limit of compensation.

- Notwithstanding anything contained in rule 17, the total compensation payable under that rule shall in no case exceed five lakh rupees in respect of any one person.

The First Schedule

Form

(see rule 3)

Application under section 58 of the Metro Railway (Operation and Maintenance) Act, 2002 (60 of 2002) for claims for compensation in respect of death or injury of passengers or destruction or damage to the goods being carried by them as their personal baggage.

Part I ? Date of the Case:

Time of the Case:

Part II ? {

|-

| Sl. No.

| Description of documents attached

| Page No.

| -

| 1.

|

|

| -

| 2.

|

|

| -

| 3.

|

|

| -

| 4.

|

|

| -

| 5.

|

|

| -

| 6.

|

|

| }

Signature of the Applicant

For use in Claims Commissioner's Office

Date of filing

Or

Date of Receipt by post

Registration No.

Part III ? In the Office of the Claims Commissioner

Between

.....Applicant

and

Metro Railway Administration

1. Particulars of the applicant:

Name and address

2. Value of claim ____

3. (i) Facts of the case:

(Give here a concise statement of facts in chronological order, each paragraph containing, as nearly as possible, a separate issue, fact or otherwise)

(ii)

(a)

Nature of relief sought

(b)

Ground of relief.

4. (i) Matters not previously filed or pending with any other Court.

(State whether the applicant had previously filed any claim, writ petition or suit regarding the matter in respect of which the present application has been made)

(ii)

In case the applicants had previously filed any claims, application, writ petition or suit, indicate the stage at which it is pending, and if decided, attached a certified copy of the order.

5. List of enclosures.

1.

2.

3.

Verification

I, (Name of the applicant) S/o, D/o, W/o Age resident of do hereby verify that the contents of paragraphs to are true to my personal knowledge, and paragraphs to are believed to be true to the best of knowledge, or the legal advice given to me, and that I have not suppressed any material fact.

Date:

Place:

Signature of the applicant

Full Address

The Second Schedule

(see rule 18)

Compensation Payable For Death And Injuries

Part I ? {

| -

| Sl.No.

| Nature of Injury

| Amount of Compensation (in Rs.)

| -

| 1

| 2

| 3

| -

| (1)

| For Death

| 5,00,000

| }

Part II ? {

| -

| Sl.No.

| Nature of Injury

| Amount of Compensation (in Rs.)

| -

| 1

| 2

| 3

| -

| (1)

| For loss of both hands or amputation at higher sites

| 4,00,000

| -

| (2)

| For loss of hand and a foot

| 4,00,000

| -

| (3)

| For double amputation through leg or thigh or amputation through leg or thigh on one side and loss of other foot

| 4,00,000

| -

| (4)

| For loss of sight to such an extent as to render the claimant unable to perform any work for which eye sight is essential

| 4,00,000

| -

| (5)

| For very severe facial disfigurement

| 4,00,000

| -

| (6)

| For absolute deafness

| 4,00,000

| }

Part III ? { |

| -

| Sl.No.

| Nature of Injury

| Amount of

Compensation (in Rs.)

| -

| 1

| 2

| 3

| -

| (1)

| For amputation through shoulder joint

| 3,60,000

| -

| (2)

| For amputation below shoulder with stump less than 8" from tip of acromion

| 3,20,000

| -

| (3)

| For amputation from 8" from tip of acromion to less than 4. ½" below tip of olecranon

| 2,80,000

| -

| (4)

| For loss of a hand or the thumb and four fingers of one hand or amputation from 4 ½" below space tip of olecranon

| 2,40,000

| -

| (5)

| For loss of thumb

| 1,20,000

|-

| (6)

| For loss of thumb and its metacarpal bone

| 1,60,000

|-

| (7)

| For loss of four fingers of one hand

| 2,00,000

|-

| (8)

| For loss of three fingers of one hand

| 1,20,000

|-

| (9)

| For loss of two fingers of one hand

| 80,000

|-

| (10)

| For loss of terminal phalanx of thumb

| 80,000

|-

| (11)

| For amputation of both feet resulting in end-bearing stumps

| 3,60,000

|-

| (12)

| For amputation through both feet proximal to the metatarsophalangeal joint

| 3,20,000

|-

| (13)

| For loss of all toes of both feet through the metatarsophalangeal joint

| 1,60,000

|-

| (14)

| For loss of all toes of both feet proximal to the proximal interphalangeal joint

| 1,20,000

|-

| (15)

| For loss of all toes of both feet distal to the proximal interphalangeal joint

| 80,000

|-

| (16)

| For amputation at hip

| 3,60,000

|-

| (17)

| For amputation below hip with stump not exceeding 5" in

length measured from tip of great trochanter but not beyond middle thigh

| 3,20,000

|-

| (18)

| For amputation below hip with stump exceeding 5" in length measured from tip of great trochanter but not beyond middle thigh

| 2,80,000

|-

| (19)

| For amputation below middle thigh to 3 ½ " below knee

| 2,40,000

|-

| (20)

| For amputation below knee with stump exceeding 3 ½ " but not exceeding 5"

| 2,00,000

|-

| (21)

| Fracture of Spine with paraplegia

| 2,00,000

|-

| (22)

| For amputation below knee with stump exceeding 5"

| 1,60,000

|-

| (23)

| From loss of one eye without complications the other being normal.

| 1,60,000

|-

| (24)

| For amputation of one foot resulting in end-bearing

| 1,20,000

|-

| (25)

| For amputation through one foot proximal to metatarsophalangeal joint

| 1,20,000

|-

| (26)

| Fracture of Spine without paraplegia

| 1,20,000

|-

| (27)

| For loss of vision of one eye without complication of disfigurement of eye ball, the other being normal

| 1,20,000

|-

| (28)

| For loss of all toes of one foot through the
metatarsophalangeal joint

| 80,000

| -

| (29)

| Fracture of Hip-joint

| 80,000

| -

| (30)

| Fracture, of Major Bone-Femur, Tibia of both limbs

| 80,000

| -

| (31)

| Fracture of Major Bone-Humerus, Radius of both limbs

| 60,000

| -

| (32)

| Fracture of Pelvis not involving joint

| 40,000

| -

| (33)

| Fracture of Major Bone ? Femur, Tibia of one limb

| 40,000

| -

| (34)

| Fracture of Major Bone-Humerus, Radius and Ulna of one limb

| 32,000

| }

Related AI tags, queries and research notes

Translation